

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

DOMINICK MURPHY,

Respondent

) Case Number: FCS-13-349074

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME), REUNIFICATION THERAPY, TIER 2 MEDIATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Respondent Dominick Eugene Murphy (Father) and Other Parent Moneesha Sealey Evans (Mother). There is one minor child subject to this proceeding: Lyriq Genesis Murphy (DOB: 11/16/12).
- 2) On May 8, 2026, Father filed an ex parte Request for Order seeking modification of child custody and visitation. Father requests orders for sole legal and sole physical custody and suspension of Mother's parenting time. In addition, Father requests reunification therapy and a referral to Tier II interview of the minor child.
- 3) On June 5, 2026, Mother filed a Responsive Declaration to Father's Request for Order, which has been read and considered by the Court. Mother requests sole legal and sole physical custody of the minor child with parenting time to Father every other weekend and during school breaks. Mother asks the Court to deny Father's requests for reunification therapy a Tier II interview of the minor child.

1 **B. Findings and Order**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.
- 6 2) Father's request for sole legal and sole physical custody of the minor child is DENIED.
- 7 3) Father's request to suspend Mother's parenting time is DENIED.
- 8 4) Father's request for reunification therapy is DENIED as Courts are no longer permitted to order
9 reunification therapy.
- 10 5) Father's request for a Tier II interview if the minor child is DENIED.
- 11 6) The Court declines to make any modification of the existing orders; all prior orders shall remain
12 in full force and effect.
- 13 7) The Court will prepare the Findings and Order After Hearing.
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